Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1332
Claimant:	Carl Lucas
Adjuster:	Darin Tyler

2024-07-04 - Received first notice of loss for a side impact collision at a signalized intersection. Insured vehicle was struck on the driver side by a third party vehicle that entered on a red signal per the insured's account. Police report requested. Tow and rental arranged for insured.

2024-07-10 - Third praty carrier acknowledged liability position is under review. Scene photos and dashcam footage received from insured. Signal timing records requested from the municipality. Claimant reports left knee injury and has retained counsel. All further contact to be routed through attorney of record.

2024-07-16 - Spoke with claimant's attorney regarding medical authorization forms and treatment records. Attorney indicates claimant has been referred for orthopedic evaluation and possible MRI of the left knee. Requested itemized bills and prior medical history for the same body part. Reserve set pending medical documentation.

2024-07-19 - Reviewed police report, which notes disputed signal phase and two independent witness statements. Witness statements suggest the third party vehicle did not stop. Vehicle damage estimate completed on insured unit, with structural and door intrusion noted. Liability assessment leainng toward third party, pending signal timing confirmation.

2024-07-26 - Attorney submitted demand package including initial treatment notes, physical therapy progress reports, and a request for policy limits review. Demand is under evaluation with medical review scheduled. Advised attorney we will respond within the standard timeframe after records are reviewed. File remains open with injury and liability both active.

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Recorded Statement

Claim number:	C-1332
Statement of:	Carl Lucas
Taken by:	Darin Tyler
Date:	2024-07-10

Q: Thank you for agreeing to give this recorded statement. Please state your full name for the record.

A: I'd rather just give you my statement without my name being read into it, if that's okay.

Q: That's fine. For the record, can you describe where the accident happened?

A: It was at an intersection in Conroe, Texas. I was going straight through a four-way intersection with a traffic light.

Q: What color was your light?

A: It was green. I'm pretty sure of that because I had just started moving after waiting at the light.

Q: What happened next?

A: Another vehicle came through from my right side and ran the red light. It hit the driver's side of my car. The impact was on the front door and it spun my car partway around.

Q: Were you injured?

A: Yes. My right knee hit the dashboard and the door frame. It swelled up quickly and I could hardly bend it afterward.

Q: Did you seek medical treatment?

A: Yes, an ambulance took me to the emergency room. They took X-rays and told me to follow up with an orthopedic doctor because they suspected ligament damage.

Q: Have you been able to return to work since the accident?

A: Not fully. I'm on light duty for now, and I can't stand for long periods without pain.

Q: Is there anything else you'd like to add to your statement?

A: Only that I was not speeding and I was paying attention. I want to make sure my side of this is on record.

Q: Thank you. This concludes the statement.